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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

( Criminal Jurisdiction )

RESERVED ON:30.09.2026

PRONOUNCED ON: 09.10.2026

PRESENT

**The Hon`ble Mr.Justice K.MURALI SHANKAR**

CRL OP(MD). Nos.20105 and 21721 of 2026

Crl.O.P.(MD)No.20105 of 2026:

Sivasankari @ Sankari ... Petitioner/
Accused No.6

Vs

1.The State of Tamilnadu,
represented by
The Inspector of Police,
Othakadai Police Station,
Madurai.
(Crime No.395 of 2026) ...Respondent/Complainant

2.Kamarani ... 2nd Respondent

For Petitioner : Mr.S.Prabhu

For Respondent : Mr.T.Lenin Kumar
Additional Public Prosecutor
: Mr.R.Anand
for Defacto complainant

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Crl.O.P.(MD)No.21721 of 2026:

1.S.Palanivel
2.P.Kangarajan ... Petitioners/
Accused No.2 and 4

Vs

State represented by
The Inspector of Police,
Othakadai Police Station,
Madurai.
In Cr.No.395 of 2026. ... Respondent/Complainant

For Petitioners : Mr.E.Sathish Rajkumar

For Respondent : Mr.T.Lenin Kumar
Additional Public Prosecutor
: Mr.R.Anand
for Defacto compalinant

PETITION FOR ANTICIPATORY BAIL Under Section 482 of B.N.S.S.

PRAYER :-

For Anticipatory Bail in Crime No.395 of 2026 on the file of the Respondent police.

**COMMON ORDER :** The Court made the following order :-

The petitioner/accused in Crl.O.P.(MD)No.20105 of 2026, who apprehends arrest at the hands of the

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respondent police for the offences punishable under Sections 329(4), 351(2), 305(a), 316(2) and 318(4) of BNS in Crime No.395 of 2026 on the file of the respondent police, seeks anticipatory bail.

2. The petitioners/accused in Crl.O.P.(MD)No. 21721 of 2026, who apprehend arrest at the hands of the respondent police for the offences punishable under Sections 329(4), 351(2), 305(a), 316(2) and 318(4) of BNS in Crime No.395 of 2026 on the file of the respondent police, seek anticipatory bail.

3. The case of the prosecution is that the defacto complainant borrowed a sum of Rs.60,00,000/- from the sixth accused and handed over five cheque leaves and sale deed as security, that after repayment of loan amount, the sixth accused did not return the security documents, that on the instigation of the sixth accused, the other accused persons went to the defacto complainant's house, picked their cell phones, deleted the phone chat records, forcibly took the cheques as well as the car

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keys and caused intimidation. It is the further case of the prosecution that the second accused while threatening the defacto complainant and her husband, he displayed on his mobile phone a photograph showing him along with a sitting Judge of this Court and represented that on account of his proximity to the said Judge, he could do anything.

4. The case of the petitioners/accused 2, 4 and 6 is that they are innocents and that they have been falsely implicated in the above case.

5. The case of the sixth accused is that she is a Doctor by profession and is residing at Chennai, that the defacto complainant and her husband were jointly running online trading business and on believing their words, the petitioner and others invested huge amounts, that several others have already lodged complaints against the defacto complainant and her husband at Coimbatore, that the defacto complainant in order to escape from the complaints, lodged the above false complain, that the

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sixth accused appeared before the District Crime Branch, Madurai on 04.072026 and submitted her detailed explanation, that no such incident had occurred as alleged by the defacto complainant and that the sixth accused is in no way connected with the alleged occurrence.

6. The case of the accused 2 and 4 is that the second accused is a friend of the fourth accused, that the second accused visited the residence of the defacto complainant in an attempt to mediate, pacify, and facilitate a resolution of the ongoing dispute between the parties, that the second accused has never had any monetary dealings, contractual relations or financial transactions with the defacto complainant, that the other allegation of extortion against the accused 2 and 4 is baseless and fabricated, that the defacto complainant voluntarily handed over four cheques directly to the fourth accused as security towards a pre-existing liability as the complainant had previously received a sum of Rs.43,28,800/- from the fourth accused, that the

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complainant's allegation that the second accused displayed a photograph of a sitting Judge of this Court on his mobile phone and intimidated her by claiming close proximity to the said Judge is completely fabricated, malicious and devoid of truth, that the second accused voluntarily surrendered his Apple iPhone to the respondent police, which was subsequently transmitted to the Cyber Crime Wing for detailed forensic analysis and upon comprehensive forensic examination and retrieval of all data and media files from the said device, no such photograph, image or related material as alleged by the complainant was found, that the fourth accused has already lodged a specific complaint against the defacto complainant on 08.07.2026 before the Velakoundampatti Police Station, Namakkal District alleging the acts of forgery and fabrication and on that basis, CSR NO.113 of 2026 is pending and that the present proceedings are a counter blast instituted with malafide intention to suppress the earlier genuine grievance of the fourth accused.

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7. It is the further case of the accused 2 and 4 is that the first accused has already preferred a complaint against the defacto complainant and her husband before the District Crime Branch, Madurai and the case came to be registered on 19.05.2026, in Cr.No.11 of 2026 for the offences under Sections 316(2) and 318(4) of BNS and that the defacto complainant and her husband persuaded the first accused to invest substantial amount into a forex trading venture with the dishonest intention from the inception, siphoned and swindled the invested money by means of fabrication and forgery.

8. It is pertinent to note that the main complaint is that there were financial transaction between the defacto complainant and the other accused and that on 05.06.2026, the accused persons went to the residence of the defacto complainant, intimidated her and her husband and forcedly obtained signed cheques and other articles. But according the second accused, he had no independent financial transaction with the defacto complainant and had accompanied the

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fourth accused only with a view to mediate and amicably settle the dispute between the fourth accused and the defacto complainant.

9. As already pointed out, a specific and serious allegation was made in the complaint stating that the second accused while threatening the defacto complainant and her husband, displayed on his mobile phone a photograph showing him along with a sitting Judge of this Court and represented that on account of his proximity to the said Judge, he could get anything done. Taking note of the said allegation, this Court, by earlier, order suo motu impleaded the defacto complainant as second respondent and directed for issuance of notice to her.

10. It is not in dispute that during the course of enquiry, the second accused has produced his Apple iphone before the Investigating Officer and the same was sent for forensic examination.

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11. The learned Additional Public Prosecutor would submit that the entire contents / data available in the said mobile phone were retrieved and examined and no photograph of the nature alleged by the defacto complainant was found therein. The learned Additional Public Prosecutor would further submit that as of now no other material has been collected to substantiate the allegation that the second accused had displayed such photograph to the defacto complainant and her husband.

12. When the matter was taken up for final hearing on 30.09.2026, the defacto complainant was present before this Court and the learned Counsel for the second accused handed over the cheques, which had allegedly been handed over by the defacto complainant in connection with the financial dealings between the parties, in open Court.

13. The learned Additional Public Prosecutor would further submit that considering the report of the forensic examination and the materials collected

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so far, the possibility of the allegation involving the name of the sitting Judge of this Court having been deliberately introduced by the defacto complainant cannot be ruled out.

14. Since the investigation is still in progress, this Court is not inclined to record any finding regarding the truth or otherwise of the said allegation at this stage. But at the same time, this Court cannot lose sight of the seriousness of the matter. The name and office of a Judge of a Constitutional Court cannot be casually or deliberately included in a criminal complaint so as to give credibility or gravity to the accusation or to denigrate the person against whom such accusations are made. In case, if the investigation reveals that the allegation involving the name of the Judge was deliberately and falsely introduced by the defacto complainant, she shall necessarily have to face all consequences that may follow in accordance with law, including any criminal or other proceedings warranted

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by the facts. The respondent police shall investigate this aspect and proceed further.

15. Regarding the sixth accused, she is stated to be a skin Doctor, practising and residing at Chennai. As already pointed out, it is her specific case that she had invested money with the defacto complainant and her husband in connection with their online trading activities and that when the amount was not returned, the complaint came to be lodged against them.

16. According to the sixth accused, she had already appeared before the District Crime Branch, Madurai and furnished her explanation. It is also pertinent to note that there existed financial transaction between the parties, more importantly between the defacto complainant and the accused 4 and 6 and filing of complaints and counter complaints between the parties. No doubt, the rival allegations of cheating and forcebly obtaining the cheques are matters required to be investigated. But at the same

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time, considering the materials gathered so far, more particularly the result of the forensic examination of the mobile phone of the second accused and also the fact that the relevant transactions are capable of being investigated on the basis of the documentary and electronic devices, this Court is of the view that the custodial interrogation of the accused 2,4 and 6 is not warranted.

17. Considering the above facts and circumstances, the nature of the allegations levelled and also the undertaking of the petitioners to co-operate with the investigation and that the petitioners are not having any pending previous cases for serious offences or other similar offences, this Court is inclined to grant anticipatory bail to the petitioners with certain conditions.

18. Accordingly, the petitioners are ordered to be released on bail in the event of arrest or on their appearance, within a period of fifteen days from the date of receipt of a copy of this order,

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before the learned Judicial Magistrate Court, Melur, Madurai District, on condition that the petitioners shall execute a bond for a sum of **Rs.25,000/-(Rupees Twenty Five Thousand only)** each with two sureties each for a like sum to the satisfaction of the learned Magistrate concerned and on further conditions that:

**[a]**the petitioners and the sureties shall affix their photographs and left thumb impression in the surety bond and the Magistrate may obtain a copy of their Aadhaar card or bank pass book to ensure their identity;

**[b]**the petitioners/accused 2 and 4 shall report before the respondent police daily at 10.30 a.m., for a period of one month and thereafter, as and when required for interrogation and the petitioner/6th accused shall appear before the respondent police as and when required for interrogation;

**[c]**the petitioners shall not tamper with the evidence or witness either during investigation or trial;

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**[d]**the petitioners shall not abscond either during investigation or trial;

**[e]**On breach of any of the aforesaid conditions, the learned Magistrate/Trial Court is entitled to take appropriate action against the petitioners in accordance with law as if the conditions have been imposed and the petitioners released on bail by the learned Magistrate/Trial Court himself as laid down by the Hon'ble Supreme Court in ***P.K.Shaji vs. State of Kerala [(2005)AIR SCW 5560];***

[f]If the accused thereafter absconds, a fresh FIR can be registered under Section 269 BNS, 2023.

(K M S J)
09.10.2026

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TO

1. The Judicial Magistrate Court, Melur,
   Madurai District.

2. The Inspector of Police,
   Othakadai Police Station,
   Madurai.

3. The Additional Public Prosecutor,
   Madurai Bench of Madras High Court,
   Madurai.

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**K.MURALI SHANKAR,J**

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PRE-DELIVERY ORDER MADE IN
CRL OP(MD). Nos.20105 and 21721 of 2026

09.10.2026